

Mutual Non-Disclosure Agreement

1070 Numa Peak Lane · Polebridge, Montana 59928 · musichabitat.com

This Mutual Non-Disclosure Agreement (the “Agreement”) is entered into as of the date last signed below (the “Effective Date”) by and between Music Habitat Corp, a Montana C-Corporation with its principal place of business at 1070 Numa Peak Lane, Polebridge, Montana 59928 (“Music Habitat”), and the undersigned party identified in the signature block below (“Counterparty”) (each a “Party,” collectively the “Parties”).

The Parties intend to explore a potential business, investment, creative, or professional relationship in connection with the Music Habitat platform and related business activities (the “Purpose”). In connection with the Purpose, each Party may disclose Confidential Information to the other. The Parties agree as follows:

1. DEFINITION OF CONFIDENTIAL INFORMATION

“Confidential Information” means any non-public information disclosed by one Party (the “Disclosing Party”) to the other Party (the “Receiving Party”), whether disclosed orally, in writing, electronically, or by any other means, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and circumstances of disclosure. This includes, without limitation: platform architecture, source code, product roadmaps, business strategies, financial projections, investor information, customer and artist data, vendor relationships, partnership terms, marketing plans, pitch materials, and any other proprietary technical or business information.

Confidential Information does not include information that: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was rightfully known to the Receiving Party prior to disclosure; (c) is rightfully received from a third party without restriction; or (d) is independently developed by the Receiving Party without use of Confidential Information.

2. OBLIGATIONS OF RECEIVING PARTY

Each Receiving Party agrees to: (a) hold all Confidential Information of the Disclosing Party in strict confidence; (b) not disclose Confidential Information to any third party without the prior written consent of the Disclosing Party; (c) use Confidential Information solely for the Purpose; (d) limit access to Confidential Information to those of its employees, contractors, or agents who have a need to know for the Purpose and who are bound by confidentiality obligations no less restrictive than those in this Agreement; and (e) protect Confidential Information using at least the same degree of care it uses to protect its own confidential information, but no less than reasonable care.

3. NO LICENSE OR TRANSFER OF RIGHTS

Nothing in this Agreement grants either Party any license, ownership right, or interest in any intellectual property, platform, trademark, or technology of the other Party. All Confidential Information remains the sole property of the Disclosing Party. No right to use any trademark, trade name, or logo of either Party is granted hereunder.

4. NON-CIRCUMVENTION

Counterparty agrees not to directly or indirectly contact, solicit, or engage any artist, venue, investor, sponsor, partner, team member, or other business relationship of Music Habitat Corp that is disclosed under or in connection with this Agreement, for the purpose of circumventing Music Habitat Corp’s business interests, without the prior written consent of Music Habitat Corp.

5. TERM

This Agreement shall remain in effect for a period of three (3) years from the Effective Date. Obligations of confidentiality with respect to trade secrets shall survive indefinitely or until the information no longer qualifies as a trade secret under

applicable law.

6. RETURN OR DESTRUCTION OF INFORMATION

Upon written request by the Disclosing Party, or upon conclusion of the business relationship between the Parties, the Receiving Party shall promptly return or certifiably destroy all Confidential Information and any copies, extracts, or derivatives thereof, and shall confirm such destruction in writing.

7. REMEDIES

Each Party acknowledges that a breach of this Agreement may cause irreparable harm for which monetary damages may be insufficient. Each Party therefore agrees that the non-breaching Party shall be entitled to seek equitable relief, including injunction and specific performance, in addition to all other remedies available at law or in equity, without the requirement of posting bond.

8. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of Montana, without regard to conflict of law principles. Any dispute arising under this Agreement shall be resolved exclusively in the state or federal courts located in Flathead County, Montana.

9. GENERAL PROVISIONS

This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior discussions, representations, or agreements relating to confidentiality. This Agreement may not be amended except by a written instrument signed by both Parties. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect. This Agreement may be executed in counterparts, including electronic signatures, each of which shall be deemed an original.

IMPORTANT: This Agreement is subject to review and approval by Music Habitat Corp's General Counsel prior to execution. Do not sign until authorized.

MUSIC HABITAT CORP

Brandon Beard

Founder & CEO

Signature

Date

brandon@musichabitat.com

COUNTERPARTY

Full Legal Name

Title / Role (if applicable)

Company / Entity (if applicable)

Signature

Date

Email